

POLICY ON HUMAN RESOURCE

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INTRODUCTION

This handbook is a summary of policies, procedures and practices related to human resource management at Avance Technologies Limited. The Executive Director is accountable for leading an effective staff team and is thereby accountable for the development and implementation of the policies outlined in this manual and this manual is to ensure organizational consistency in the application of the practices.

STATEMENT OF PHILOSOPHY

Avance Technologies Limited wishes to maintain a work environment that fosters personal and professional growth for all employees. Maintaining such an environment is the responsibility of every staff person. It is the responsibility of all staff to:

- Foster cooperation and communication among each other.
- Treat each other in a fair manner, with dignity and respect.
- Promote harmony and teamwork in all relationships.
- Strive for mutual understanding of standards for performance expectations, and communicate routinely to reinforce that understanding.
- Encourage and consider opinions of other employees or members, and invite their participation in decisions that affect their work and their careers.
- Encourage growth and development of employees by helping them achieve their personal goals at the organization and beyond.
- Seek to avoid workplace conflict, and if it occurs, respond fairly and quickly to provide the means to resolve it.
- Administer all policies equitably and fairly, recognizing that jobs are different but each is important; that individual performance should be recognized and measured against predetermined standards; and that each employee has the right to fair treatment.
- Recognize that employees in their personal lives may experience crisis and show compassion and understanding.

EMPLOYMENT AT AVANCE TECHNOLOGIES LIMITED

Employment Equity

Avance Technologies Limited does not discriminate between any employees with regard to race, ancestry, place of origin, colour, ethnic origin, language, citizenship, creed, religion, gender, sexual orientation, age, marital status, physical and/or mental handicap or financial ability.

Nepotism

No candidate shall be hired for a position where they may report to, or supervise a member of their immediate family. Immediate family is defined as: parent(s), sibling(s), grandparent(s), spouse, father-in-law or mother-in-law etc. Personal relationships with other employees or

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CIN: L51900MH1985PLC035210

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members of the Board of Directors or Committees should be disclosed prior to accepting any offer from the Company.

Orientation

All new employees to Avance Technologies Limited shall receive an orientation session which will encompass an overview of general policies, procedures and operations. This will also provide employees, new to either a position or the organization, an opportunity to learn the performance expectations management has with regard to the position in question. They will be given a copy of this Employee Handbook and will be expected to learn its contents.

Employee Duties

Attached to an Offer of Employment, is a description of the job and the associated responsibilities, along with any additional tasks possibly required. This document will be used to evaluate performance both during the probation period and after. If an employee is unsure of its contents, they should not hesitate to ask for clarification.

From time to time, it may be necessary to amend an employee's job description. These amendments will be discussed with the employee in advance; however the final decision on implementation will be made by management.

Personnel File

The Company does collect personal information for inclusion in personnel files. This information is available to the employee, the Executive Director and the HR person]. This information is kept in a secure location, and is not shared with outside members. Information which is contained in an employee's personnel file includes the following: resume, letter of offer, performance reviews, amendments to job descriptions, disciplinary notices, tax forms, copies of enrolment forms for benefits and approved leave requests.

Probation

The first six (6) months of employment are probationary. During this time both parties may assess suitability for employment with the Employer. This also provides management an opportunity to assess skill levels and address areas of potential concern. During the first six months of the probationary period, employment may be terminated by either party for any reason whatsoever, with or without cause, and without notice or payment in lieu of notice. At the completion of the probation period, the employee and employer shall meet and review progress to date. At this time one of three things will occur:

- i. Probation will end.
- ii. Probation may be extended.
- iii. Employment will end.

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Annual Salary

Salaries shall be determined by the Executive Director, based on budget considerations and commensurate with the experience of the successful candidate. The organization shall pay employees on a monthly basis, less the usual and necessary statutory and other deductions payable in accordance with the Employer's standard payroll practices. These payroll practices may be changed from time to time at the Employer's sole discretion.

Performance Appraisals

Performance reviews, for all employees, will occur near the end of April, and annually thereafter. Employees should prepare for this meeting by preparing a draft workplan for the coming year. This meeting is to review successes and challenges from the preceding year, and to establish the objectives for the coming year. This would also be the opportunity for either party to identify and recommend professional development opportunities which may assist the employee in their day to day work or to grow within the organization.

Professionalism

When representing the Company, staff should dress and behave appropriately. Employees should choose to dress in a manner which presents a professional image to the public and is respectful of others.

Discipline

Discipline at the company shall be progressive, depending on the nature of the problem. Its purpose is to identify unsatisfactory performance and / or unacceptable behaviour. The stages may be:

- Verbal reprimand
- Written reprimand
- Dismissal

Some circumstances may be serious enough that all three steps are not used. Some examples of these types of situations are theft, assault or wilful neglect of duty

Hours of Work

The regular office hours for the Company are 9.30 a.m. to 7.00 p.m. Monday to Friday and 9.30 a.m. to 4.00 p.m. on Saturdays. Employees may also be expected to work such other hours as may be requested or required, from time to time. Employees hired on a part time basis will have schedules determined on a case by case basis.

Employees are required to notify their supervisor, in advance, of planned days away from the office. Unplanned absences from the office should be reported to the employee's supervisor as soon as could reasonably be expected. At the discretion of the Executive

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Director, depending on circumstances, employees may be allowed to work from home for specific periods of time.

DEPARTURE

Termination With or Without Cause

An Employment Contract may be terminated by the Employer at any time for cause or for any reason on a without cause basis, without notice or payment in lieu of notice whatsoever, except payment of outstanding salaries, overtime and vacation pay to the date of termination. Cause includes, but is not limited to, any act of dishonesty, conflict of interest, breach of confidentiality, harassment, insubordination, or careless, negligent or documented poor work performance.

Resignation

The Employee shall provide with a notice of resignation with at least in advance of 30 days in writing. The employee may revoke the notice of resignation but there is no guarantee that the employee may return in his same position. In the event of serving a notice, the employees release will be governed by General Terms & Conditions of Employment in force at that point of time subject to satisfactory handover of duties & responsibilities to the relevant person responsible.

Company Property

Upon termination of employment for any reason, all items of any kind created or used pursuant to the employee's service or furnished by the Employer including but not limited to computers, documents, files, diskettes, manuals, confidential information, or any other materials shall remain and be considered the exclusive property of the Employer at all times, and shall be surrendered to the Executive Director, in good condition, promptly and without being requested to do so.

LEAVES

Sick Leave

Employees will be entitled to twelve (12) days of sick leave per calendar year accumulated on the basis of 1 day per month. A maximum of twelve (12) days of sick leave may be carried forward to the next calendar year so that an employee shall have no more than twenty (20) sick days in any one calendar year. Any additional sick leave accumulated will be forfeit. Moreover, regardless of the amount of sick leave accumulated, sick leave will not be paid out upon resignation, retirement, or termination of employment for any reason. Furthermore, since Sick Leave has no cash value, employees may not use more than they have accumulated, without the express written permission of the Executive Director. Sick leave can be used for personal illness, personal medical appointments, and visits to specialists.

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The Employer reserves the right to request information with respect to limitations & restrictions in such manner as it deems necessary in the circumstances with respect to any request for paid or unpaid sick leave. The employer also reserves the right to request a doctor's note for absences of three (3) days or longer.

Compassionate Leave

The Company will grant up to three (3) working days per event on the occasion of a death in the staff member's immediate family. Immediate family is defined as: parent(s), sibling(s), grandparent(s), spouse, children, father-in-law or mother-in-law. Additional compassionate leave may be granted at the discretion of the Executive Director for reasons not covered elsewhere in this manual. These requests should be discussed in person with the ED and followed by a written submission.

Maternity, Parental Leave

Maternity/Parental/Adoptive and other government supported Leave shall conform to the provisions of the applicable Laws. The full period of the leave is granted without pay. When the employee returns to work, employment is guaranteed in a similar position at the same salary level. During the full period of leave, vacation and sick leave shall continue to accumulate. Every attempt will be made to return employees to a position of equal responsibility on return from leave status, however, no guarantees exists that the exact position left will be available on return.

PROFESSIONAL DEVELOPMENT

At the discretion of the Executive Director, employees may be able to attend conferences, courses, seminars and meetings, identified through annual work plans and performance reviews, which may be beneficial to the employee's professional development. If these opportunities are directly related to the employee's position, or are suggested by the Executive Director, then the company will cover the cost of registration.

If the Company has agreed to pay for a course the fees will be paid on evidence of successful completion.

CONFIDENTIAL INFORMATION AND INTELLECTUAL PROPERTY

Confidential Information

From time to time, employees of the Company may come into contact with confidential information, including but not limited to information about the Company's members, suppliers, finances and business plans. Employees are required to keep any such matters that may be disclosed to them or learned by them confidential.

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Furthermore, any such confidential information, obtained through employment with the Company, must not be used by an employee for personal gain or to further an outside enterprise.

Intellectual Property

Any intellectual property, such as trademarks, copyrights and patents, and any work created by an employee in the course of employment at the Company shall be the property of the Company and the employee is deemed to have waived all rights in favour of the Company. Work, for the purpose of this policy refers to written, creative or media work.

IT Information Storage and Security

Any storage devices (CD's, or USB's) used by employees at the Company at the Company's address, should acknowledge that these devices and their contents are the property of the Company. Furthermore, it should be understood by employees, that company equipment should be used for company business only during normal working hours. Downloading of personal materials on company equipment can be harmful to said equipment and should not be done.

HEALTH AND SAFETY

The Company, along with its employees, must take reasonable precautions to ensure that the workplace is safe. The organization complies with all requirements for creating a healthy and safe workplace. Employees who have health and safety concerns or identify potential hazards should contact the management. Alcohol consumption or illegal drug use is not permitted during work hours on the premises.

Air Quality

Indoor air quality can lead to many health issues. The Company recognizes this and attempts to minimize the risks associated with indoor air quality and the effects on its employees. Issues pertaining to air quality should be reported to the Management

Smoke Free Environment

Smoking in the offices of the Company is not permitted at any time. Any person found smoking would be heavily penalised

RENOVATIONS

As odours from building materials and noise levels for tools can cause discomfort to employees, renovations will be scheduled to have a minimum impact on employees. This may include renovating during non work hours (evenings & weekends) and ensuring direct ventilation to control fumes. Carpets should be installed and cloth furniture unwrapped late in the day so emissions may occur during non working hours.

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HARRASSMENT

The Company wants to provide a harassment-free environment for its employees and volunteers. Mutual respect, along with cooperation and understanding, must be the basis of interaction between members and staff. The Company will neither tolerate nor condone behaviour that is likely to undermine the dignity or self-esteem of an individual, or create an intimidating, hostile or offensive environment.

There are several forms of harassment but all can be defined as any unwelcome action by any person, whether verbal or physical, on a single or repeated basis, which humiliates, insults or degrades. "Unwelcome", for the purposes of this policy, refers to any action which the harasser knows or ought to reasonably know is not desired by the victim of the harassment.

Specifically, racial harassment is defined as any unwelcome comments, racist statements, slurs, jokes, graffiti or literature or pictures and posters which may intentionally or unintentionally offend another person.

Sexual harassment is any unwanted attention of a sexual nature such as remarks about appearance or personal life, offensive written or visual actions like graffiti or degrading pictures, physical contact of any kind, or sexual demands.

WORKPLACE VIOLENCE

Workplace violence can be defined as a threat or an act of aggression resulting in physical or psychological damage, pain or injury to a worker, which arises during the course of work. Further to the definition of violence, is the definition of abuse. Abuse can be verbal, psychological or sexual in nature. Verbal abuse is the use of unwelcome, embarrassing, offensive, threatening or degrading comments. Psychological abuse is an act which provokes fear or diminishes a person's dignity or self-esteem. Finally, sexual abuse is any unwelcome verbal or physical advance or sexually explicit statement.

The Company has a zero tolerance limit with regards to harassment and violence. Employees or volunteers engaging in either harassing or violent activities will be subject to discipline, which may include termination of employment, removal from Boards or committees and possibly criminal charges.

DISPUTE RESOLUTION

Regrettably, conflict can occur in any working environment. In an effort to resolve conflict in an expedient, yet fair manner, the Company recommends the following process for conflict or dispute resolution.

- Speak to the person you are having the dispute with. Many times disputes arise due to misunderstandings and miscommunications.
- If speaking to the individual does not work, speak to the Team Leaders. The TL will arrange a meeting between those involved in the dispute, to determine a resolution.
- If the TL is unable to resolve a workplace dispute, the parties may be referred to mediation by the Management. The resolution of the mediator is binding on both parties of the dispute.

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